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Judgment Sheet
IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

Writ Petition No.48803 of 2020

Sohail Zarar Ali Khan

Versus

Additional District Judge and others

JUDGMENT

Date of hearing	20.05.2026
Petitioner by:	Mr. Tafazzul H. Rizvi and Ms. Beenish Sikandar, Advocates.
Respondent Nos. 3 to 6 by:	M/s Umair Afzal and Hamid Abbas, Advocates.

RAHEEL KAMRAN, J.: Through this petition filed under Article 199 of the Constitution of the Islamic Republic of Pakistan, 1973 the petitioner has assailed the following:

- i. Judgment and decree dated 11.06.2019 passed by the Family/Guardian Judge-VII, Lahore, whereby a suit instituted by respondents No.3 to 6 against the petitioner for recovery of maintenance allowance, dower and dowry articles was partly decreed, and
- ii. Judgment and decree dated 05.06.2020 passed by the Additional District Judge, Lahore, whereby appeal preferred by the petitioner against the above referred judgment and decree was partly allowed.

2. The facts necessary for adjudication of the instant petition are that Mst. Laleen Ali Khan, respondent No.3, (hereinafter referred to as “the plaintiff”), instituted a suit against the petitioner (hereinafter referred to as “the defendant”), for recovery of maintenance allowance for herself as well as for her three minor daughters, respondents No.4 to 6, besides recovery of dower

and dowry articles. It was averred in the plaint that the plaintiff was married to the defendant on 25.06.2005. Initially, the matrimonial relationship between the spouses remained cordial and from the wedlock, three daughters, respondents No.4 to 6, were born. However, with the passage of time, the relationship between the parties became strained. According to the plaintiff, on 16.11.2016, the defendant ousted her from the matrimonial home after snatching the minors from her custody. The plaintiff thereafter approached the Islamabad High Court, Islamabad, through a writ petition and obtained custody of the minors, who have since been residing with her. The plaintiff further pleaded that at the time of marriage, she was given dowry articles and gifts, which remained in possession of the defendant. She claimed an amount of Rs.29,500,000/- as alternate value of the said dowry articles and gifts. She also claimed deferred dower amounting to Rs.10,00,000/-. It was further alleged that the defendant, after breaking open her closet in her absence, took away her personal belongings, including jewellery, Grenadian passports of the minors, United Kingdom and Pakistani passports of the plaintiff, receipts of jewellery items, original documents relating to the properties of the plaintiff's father and share certificates of Bank Alfalah Limited worth Rs.17,000,000/-.

The suit was contested by the defendant through written statement. On the basis of divergent pleadings of the parties, issues were framed and evidence was recorded. Upon conclusion of the trial, the Family Court, vide judgment and decree dated 11.06.2019, partly decreed the suit. Each minor was held entitled to maintenance allowance at the rate of Rs.1,00,000/- per month with effect from January, 2017, with an annual increase at the rate of 10%, till her marriage or till she otherwise remains legally entitled. In addition thereto, the minors were also held entitled to recovery of their school/college/university fee from the defendant. The plaintiff was awarded maintenance allowance at the rate of Rs.30,000/- per month from January, 2017 till expiry of her Iddat period. She was also held entitled to recover Rs.10,00,000/- as alternate value of dowry articles. The claim of deferred dower, however, was not decreed by the Family Court.

Feeling aggrieved, the defendant preferred an appeal. The Additional District Judge, Lahore, vide judgment and decree dated 05.06.2020, partly accepted the appeal. The alternate value of dowry articles was reduced from Rs.10,00,000/- to Rs.5,00,000/-. The Appellate Court also decreed an amount of Rs.5,00,000/- in favour of the plaintiff as 50% of the deferred dower. Hence, the instant writ petition.

3. Learned counsel for the petitioner contends that the quantum of maintenance allowance awarded to the minors is excessive and beyond the financial means of the petitioner. It is argued that the courts below misread and non-read the evidence available on the record while determining the financial status of the petitioner. According to learned counsel, the petitioner is not possessed of such resources as would justify fixation of maintenance allowance at the rate of Rs.1,00,000/- per month for each minor, in addition to their educational expenses and annual increase. Learned counsel further submits that the plaintiff herself left the matrimonial home and remained unwilling to resume cohabitation despite serious efforts made by the petitioner. It is maintained that in such circumstances, she was not entitled to past maintenance with effect from January, 2017 and could, at the most, have been awarded maintenance only for the period of Iddat. It is further contended that the financial position of the plaintiff's parents was not such as could enable them to provide dowry articles of the value claimed by the plaintiff. Learned counsel argues that the courts below failed to properly appreciate the evidence on this aspect and the Appellate Court, although reduced the amount, still erred in granting Rs.5,00,000/- as alternate value of dowry articles. With regard to dower, learned counsel submits that the petitioner had specifically pleaded and proved that the deferred dower had already been paid to the plaintiff. It is argued that the Appellate Court erred in law while decreeing the claim of deferred dower. Learned counsel further emphasizes that the Family Court had dismissed the plaintiff's claim to the extent of deferred dower and the plaintiff did not file any appeal or cross-objections against such dismissal. It is, therefore, argued that in an appeal filed by the petitioner alone, the Appellate Court could not have granted a decree for deferred dower in favour of the plaintiff. According to learned

counsel, such exercise of jurisdiction by the Appellate Court is illegal, beyond the scope of appeal and not sustainable in law.

4. Conversely, learned counsel for respondents No.3 to 6 has vehemently opposed the petition and supported the impugned judgments and decrees.

5. I have heard learned counsel for the parties at considerable length and have perused the available record with their able assistance.

6. The first and foremost question relates to the maintenance allowance awarded to the three minor daughters of the petitioner. The Family Court awarded Rs.1,00,000/- per month to each minor with effect from January, 2017, with 10% annual increase, besides educational expenses. The Appellate Court maintained this part of the decree. The principal objection of the petitioner is that the amount so awarded is beyond his financial means. The record, however, does not support the petitioner's stance. On the contrary, the pleadings of the petitioner and his evidence are in marked contradiction. The plaintiff specifically pleaded that the defendant was a businessman; that he was owner and Managing Director of Frobels International School at Islamabad, Rawalpindi, Lahore, Wah and Faisalabad; that he was earning approximately Rs.1 crore; and that he was owner or joint owner of several companies and properties. These assertions were denied by the defendant in his written statement. He denied being Managing Director of Frobels International School, whether at Islamabad or elsewhere. He also denied ownership of any company in Pakistan or abroad and similarly denied ownership of properties. However, when the petitioner appeared in the witness box as DW-1, his cross-examination revealed a position materially different from his pleadings. He admitted ownership of agricultural land, though he avoided disclosing its total measurement and income by stating that such facts were known to his clerk. He further admitted that he was Director and shareholder of Frobels Company (Private) Limited, which owned and operated a school system comprising as many as seven schools in different cities. He also admitted having business in the fruit market at Islamabad and association with a company namely Synergen, having its head office at Islamabad and offices at Karachi and

Lahore. He further acknowledged having nationality of Grenada and having remained Chairman and Director of different companies, including Pak Iran Bank. The record also shows that he had a history of frequent foreign business tours. Even during proceedings before the Family Court, he was stated to be abroad on account of business on different occasions and was also stated to be visiting other cities in connection with business. In addition, the plaintiff produced record of various companies showing the petitioner to be director therein. The above circumstances clearly establish that the petitioner is not a person of ordinary means. His attempt to understate or conceal his financial position is apparent from the record. Where a father is required to maintain his children, his past and present earnings, assets and financial capacity are material considerations for determining the quantum of maintenance. If he withholds such information or attempts to conceal his resources, an adverse inference may legitimately be drawn against him. In the case of *“Muhammad Asim and others v. Mst. Samro Begum and others”* (PLD 2018 SC 819), the Supreme Court deprecated an attempt at intentional non-disclosure of earnings by a person liable to pay maintenance and held that where a husband/father is required to pay maintenance, his earnings must be disclosed because his financial status determines the amount of maintenance. It was further observed that in case of non-disclosure, an adverse inference can be drawn against him and willful non-disclosure suggests that the amount awarded is well within his means. The instant case attracts the same principle with greater force. The petitioner denied his resources in pleadings but admitted several income-generating assets and business associations in cross-examination. The plaintiff was compelled to bring the petitioner’s financial status on record through documentary material and by confronting him in cross-examination. Such conduct does not advance the petitioner’s case, rather it strengthens the inference that the maintenance awarded is within his means.

7. There is yet another significant circumstance. The plaintiff pleaded that the minors were studying at the American School/International School at Islamabad and that the defendant was paying approximately US\$56,000/- per annum as their school fee. In the written statement, the

defendant did not specifically deny the quantum of fee. He rather stated that the minor daughters had been admitted to the International School of Islamabad and that he had paid their fee in advance for the full year. The plaintiff produced invoices of the International School of Islamabad Society as Ex.P-6, Ex.P-7 and Ex.P-8, which show that total charges in respect of Misha Khan, Eisha Khan and Amal Khan were paid in the amounts of US\$22,040/-, US\$22,040/- and US\$11,177/-, respectively, on 03.02.2017. These documents not only corroborate the plaintiff's stance but also reflect the standard of life and educational environment which the minors were enjoying. It is also relevant that in his written statement the defendant took the plea that while leaving his house, the plaintiff took with her cash amounting to Rs.50,00,000/-, prize bonds worth Rs.20,00,000/- and 20 gold coins, each weighing 10 tola. The presence of such huge cash, prize bonds and gold in a household is itself inconsistent with the petitioner's claim of limited means. For a person of ordinary income, availability of assets of such nature and value in the house is difficult to imagine.

8. Maintenance of minors is not to be fixed in a mechanical manner. It must correspond to the needs of the children, their previous standard of living, educational requirements, social background and the financial capacity of the father. A father who provided a high standard of living to his children while they were in his custody, cannot seek to curtail that standard merely because the children are living with their mother after breakdown of the matrimonial relationship. The obligation to maintain children is independent of disputes between spouses. The children cannot be made to suffer for strained relations between their parents. Analyzed in this perspective, the maintenance allowance of Rs.1,00,000/- per month for each minor, coupled with educational expenses and 10% annual increase, cannot be held to be excessive or beyond the petitioner's means. The annual increase is also reasonable, as it caters for inflation and the rising cost of living and education.

9. Needless to observe here that the instant case, unfortunately reflects that the petitioner despite possessing substantial means, resisted the maintenance of his three daughters on grounds which do not stand

established from the record. The minors were admittedly maintained at a high standard while they were with him. After they came into the custody of their mother, the petitioner sought to minimize his obligation by suppressing or diluting his financial status. Such conduct cannot be approved. The courts below, therefore, committed no illegality in determining the maintenance of the minors in the manner stated above.

10. The next question relates to the maintenance allowance awarded to the plaintiff at the rate of Rs.30,000/- per month from January, 2017 till expiry of her Iddat period. The petitioner's objection is that the plaintiff herself left the matrimonial home and was unwilling to rejoin him and as such she was not entitled to maintenance for the period prior to Iddat. It is an admitted position that the marriage between the parties was dissolved by way of khula. However, dissolution by khula, by itself, does not retrospectively erase the wife's right to maintenance during the subsistence of marriage or for the period for which she was otherwise legally entitled. The crucial question is whether the plaintiff was living separately without lawful justification or whether the separation was occasioned by circumstances attributable to the defendant. The plaintiff while appearing as PW-1 stated that she had separated from the defendant on account of physical torture, mental torture, financial torture, drug addiction of the defendant and his second marriage without her permission. She was subjected to lengthy and searching cross-examination but her stance on the material reasons for separation could not be shaken. Nothing substantial was extracted from her which could establish that she had left the matrimonial home without cause or that she was disobedient in the legal sense. The petitioner also failed to satisfactorily controvert the allegation of second marriage or to establish that permission of the plaintiff or of the competent forum was obtained before contracting such marriage. The petitioner's plea that the plaintiff had obtained nationality of the United Kingdom and wanted to settle there and that she desired the petitioner to shift his business there, does not, even if assumed to be correct, amount to disobedience or disentitle her from maintenance. A desire or preference regarding residence, particularly between spouses who lived together for more than a decade and

had three children, cannot be converted into a ground to deprive a wife of her lawful maintenance. There is no convincing evidence on record that the plaintiff was guilty of such conduct which legally disentitled her. The Supreme Court in the case of “Dr. Seema Hanif Khan v. Waqas Khan and others” (PLD 2026 SC 91) has held in clear terms that alleged disobedience is not a legal ground to deny maintenance. It was further emphasized that presumptions and notions cannot nullify the legal obligation to pay maintenance. In the case in hand, the petitioner’s plea of disobedience is built more on allegation than proof. Likewise, in the case of “Haseen Ullah v. Mst. Naheed Begum and others” (PLD 2022 SC 686), it was held that a wife who is willing to discharge her marital obligations but cannot do so for no fault of her own and is prevented by an act or omission of the husband, is legally entitled to receive maintenance and the husband cannot benefit from his own wrong. Furthermore, in the case of “Muhammad Jamil and others v. Mst. Sajida Bibi and others” (PLJ 2021 SC 28), the Supreme Court observed that where a husband contracts second marriage without seeking prior permission either from the existing wife or from the Arbitration Council, the entire dower, whether prompt or deferred, becomes payable without delay. Once the deferred dower had become immediately payable on account of the petitioner’s second marriage, the failure of the petitioner to discharge such obligation furnished an independent and lawful justification to the plaintiff to decline resumption of matrimonial obligations. A husband who himself withholds a legally payable dower cannot insist upon performance of corresponding matrimonial duties by the wife, nor can he characterize her refusal in such circumstances as disobedience. Thus, the petitioner, having failed to establish payment of the dower which had become due, cannot derive any advantage from his own default or use the plaintiff’s separate residence as a ground to defeat her claim of maintenance. Furthermore, the plaintiff remained in matrimonial bond with the petitioner from 2005 till dissolution of marriage and nothing convincing has been brought on record to show that she was disentitled to maintenance from January, 2017 till expiry of Iddat. The maintenance awarded to her at the rate of Rs.30,000/- per month is modest, particularly when measured against the petitioner’s

financial position. The findings of the courts below on this issue are, therefore, neither perverse nor contrary to law.

11. Adverting now to the issue pertaining to the alternate value of dowry articles, the plaintiff had claimed a substantial amount as alternate value of dowry articles and gifts. The Family Court awarded Rs.10,00,000/- in lieu thereof, whereas the Appellate Court reduced the amount to Rs.5,00,000/-. The petitioner's stance on this issue suffers from inherent contradiction. On the one hand, he pleaded that the plaintiff had already taken away the dowry articles, whereas on the other hand, he challenged the financial capacity of the plaintiff's parents to provide such articles. These two positions cannot comfortably stand together. If the articles were never given due to lack of financial capacity, the question of the plaintiff having taken them away would not arise. Conversely, if she took them away, their existence at the matrimonial home stands implied. The record also shows that the plaintiff is a highly educated lady. She obtained a Master of Science degree in Professional Communication from Clark University. It is not denied that the expenses of her education abroad were borne by her parents. This circumstance is relevant in assessing the financial standing of her family. While the plaintiff may not have proved every article with mathematical precision, proceedings before a Family Court are not to be approached with the same rigidity as ordinary civil litigation. Family Courts are required to assess such claims on the basis of probabilities, surrounding circumstances, social status of the parties and the evidence produced.

12. The marriage between the parties was solemnized on 25.06.2005 and the plaintiff remained in the house of the defendant till the end of 2016. Therefore, the element of use dowry articles, depreciation, wear and tear and lapse of time had to be taken into account. The Appellate Court, while considering these factors, reduced the alternate value from Rs.10,00,000/- to Rs.5,00,000/-. The amount so fixed appears to be just, reasonable and balanced. It neither accepts the exaggerated claim in entirety nor denies the plaintiff a legitimate recompense. No jurisdictional defect, misreading or non-reading of evidence has been pointed out which may justify interference by this Court in constitutional jurisdiction.

13. The last issue relates to deferred dower. The Family Court dismissed the plaintiff's claim to this extent. The Appellate Court, however, awarded Rs.5,00,000/- to the plaintiff as 50% of the deferred dower, keeping in view that the marriage had been dissolved by way of khula and the plaintiff was liable to surrender 25% of admitted prompt dower or 50% of deferred dower, as the case may be. The petitioner has challenged this finding on two grounds. Firstly, it is argued that the deferred dower had already been paid. Secondly, it is contended that since the plaintiff did not file an appeal or cross-objections against dismissal of her claim by the Family Court, the Appellate Court had no jurisdiction to grant such relief in an appeal filed by the petitioner alone. As to the first ground, the burden to prove payment of dower was upon the petitioner, who asserted such payment. However, he failed to discharge this burden. No convincing documentary evidence was produced nor was any reliable witness examined in whose presence the alleged payment was made. A bald assertion of payment cannot defeat a legally recognized claim of dower. Dower is an obligation undertaken at the time of marriage and cannot be treated lightly.

14. As to the second ground, the objection of learned counsel for the petitioner is technical in nature and cannot prevail in the facts and circumstances of the case. It is true that the plaintiff did not independently challenge the dismissal of her claim for deferred dower before the Appellate Court. However, the appellate jurisdiction in family matters is not so narrowly confined as to disable the Appellate Court from correcting an error committed by the Family Court, particularly where the right involved is of a wife, former wife or child. In the case of "Shahro and others v. Mst. Fatima and others" (PLD 1998 SC 1512), the Supreme Court explained that although Order XLI Rule 22 of the Civil Procedure Code, 1908 deals with the right of a party to file cross-objections, the rigours of that rule have been softened by Order XLI Rule 33 CPC, which empowers the Appellate Court to pass any decree or make any order which ought to have been passed or made and to do so even in favour of respondents or parties who may not have filed any appeal or cross-objections. The object of conferring such wide power upon the Appellate Court is to ensure prompt relief in cases of

hardship, to redress wrongs and to do complete justice. Similarly, in the case of *“Suba and others v. Abdul Aziz and others”* (2008 SCMR 332), the Supreme Court held that a party in whose favour a decree has been passed is not necessarily required to file an appeal or cross-objections and may support the decree on all available grounds, even if some findings have been recorded against it. It was further held that where a respondent has neither filed a petition nor an appeal, the Court may still extend relief if it is necessary to do complete justice between the parties or to prevent the ends of justice from being defeated.

15. The above principle has particular significance in family jurisdiction. In the case of *“Muhammad Asim and others v. Mst. Samro Begum and others”* (PLD 2018 SC 819), the Supreme Court while dealing with an analogous situation, held that a wife, former wife, child or children should not be disentitled of a relief merely because the Family Court failed to pass an order which ought to have been passed in their favour and if the Appellate Court corrects such a mistake, it does so in exercise of powers inherent in an appellate court. For convenience, relevant portion of the said judgment is reproduced below:

“The learned Additional District Judge held that the cross-objections filed by Mst. Samro Begum and her daughter were not maintainable: could he not then have modified the judgment and decree in their favour? Rule 33 of Order XLI of the Code of Civil Procedure (“C.P.C.”) enables the Appellate Court “to pass any decree and make any order which ought to have been passed or made ... and may be exercised in favour of all or any of the respondents or parties, although such respondents or parties may not have filed any appeal...”. We are aware that section 17 of the Family Courts Act, 1964 excludes the applicability of the C.P.C., except those provisions specifically made applicable, and those of the Qanun-e-Shahadat Order, 1984. These two procedural laws have undoubtedly been excluded to avoid technicalities and to decide cases in the shortest possible time. The Preamble of the Family Courts Act, 1964 states the reason for enacting it, which is, “for the expeditious settlement and disposal of disputes relating to marriage and family affairs and for matters connected therewith.” A wife, a former wife, a child or children should not be disentitled because the Family Court failed to pass an order which ought to have been passed in their favour; and if the

Appellate Court correct this mistake it can do so in exercise of the powers inherent in an appellate court. Exercise of such powers even the formal and stricter C.P.C. states vest in a Court of appeal (Rule 33 of Order XLI of the C.P.C.).

5. The learned Family Judge had disallowed Mst. Samro Begum's claim to her haq mehr which the learned Appellate Judge found had been established by evidence and therefore awarded the same. No reason has been advanced that this factual determination by the Appellate Court, which had the jurisdiction to do so was illegal or wrong. As regards increasing the maintenance amount annually by ten per cent the learned Appellate Judge did not give a reason for doing so, however, it is reasonable and logical to assume that it was done to cater for inflation. Increasing the maintenance by ten per cent annually was also within the discretion and jurisdiction of the Appellate Court and the exercise of such discretion and granting an annual increase of ten per cent is comparable to the prevailing and historical rate of inflation.”

In light of the above, the Appellate Court was competent to correct the error committed by the Family Court regarding deferred dower. The petitioner has not been able to point out any factual inconsistency or legal infirmity in the determination that the deferred dower remained unpaid. Once such factual determination is supported by the record, the mere absence of an appeal or cross-objections by the plaintiff cannot be used as a tool to defeat her lawful entitlement. The appellate court was justified in modifying the relief in order to do complete justice between the parties.

16. For the foregoing reasons, the conclusions reached by the courts below particularly the appellate court are supported by the record and by settled principles governing family matters. The petition in hand being bereft of merit, is dismissed. There shall be no order as to costs.

(RAHEEL KAMRAN)
JUDGE

Approved for reporting.

JUDGE